

Opinion of KENNEDY, J.

JUSTICE KENNEDY, with whom JUSTICE SOUTER joins, concurring in part and concurring in the judgment.

Although I agree with the essential parts of the Court's analysis, I write separately to make several observations.

I agree with the Court's conclusion in Part III–A that, on the record before us, respondents have failed to demonstrate that they themselves are “among the injured.” *Sierra Club v. Morton*, 405 U. S. 727, 735 (1972). This component of the standing inquiry is not satisfied unless

“[p]laintiffs . . . demonstrate a ‘personal stake in the outcome.’ . . . Abstract injury is not enough. The plaintiff must show that he ‘has sustained or is immediately in danger of sustaining some direct injury’ as the result of the challenged official conduct and the injury or threat of injury must be both ‘real and immediate,’ not ‘conjectural’ or ‘hypothetical.’” *Los Angeles v. Lyons*, 461 U. S. 95, 101–102 (1983) (citations omitted).

While it may seem trivial to require that Mses. Kelly and Skilbred acquire airline tickets to the project sites or announce a date certain upon which they will return, see *ante*, at 564, this is not a case where it is reasonable to assume that the affiants will be using the sites on a regular basis, see *Sierra Club v. Morton*, *supra*, at 735, n. 8, nor do the affiants claim to have visited the sites since the projects commenced. With respect to the Court's discussion of respondents' “ecosystem nexus,” “animal nexus,” and “vocational nexus” theories, *ante*, at 565–567, I agree that on this record respondents' showing is insufficient to establish standing on any of these bases. I am not willing to foreclose the possibility, however, that in different circumstances a nexus theory similar to those proffered here might support a claim to standing. See *Japan Whaling Assn. v. American Cetacean Society*, 478 U. S. 221, 231, n. 4 (1986) (“[R]espondents . . . undoubtedly have alleged a sufficient ‘injury in fact’ in that